



NO DIVERSION OR UP-FRONT PLEAS WITHOUT RIAC ADVICE

Until you receive advice on the immigration consequences of your client's case, you can **never** assume it is safe for a non-citizen client to:

1. Enter into any kind of diversion program;
2. Acknowledge any involvement with drugs; or
3. Enter an up-front plea on the basis that they will be allowed to re-plea at a later date.

A plea or entry into a diversion program can have permanent immigration consequences :

- Regardless of how the criminal court treats what happened;
- **REGARDLESS OF THE ULTIMATE DISPOSITION.**

Unless you obtain an advisal on immigration consequences, it is never safe to allow your client to proceed - because entry into a diversion program and/or entering an up-front plea:

- Will **constitute a conviction for immigration purposes** - even if the court later vacates that plea, even if the court later seals or expunges the record;
- (If your client enters into a substance abuse program): **could make them deportable for being a drug abuser or addict** (even if they are not convicted of a drug crime);
- (If your client enters into a domestic violence program): **could make them deportable for having violated an order of protection** - including where only non-violent acts such as violating the stay away portion of an OP are involved;
- **Could subject them to arrest by ICE** - which would mean they cannot complete any diversion program or agreed terms.

**EVEN IF YOU ARE GIVEN AN AMAZING, TIME-SENSITIVE OFFER: ALWAYS CALL
RIAC FIRST!**